BEFORE THE NATIONAL COMPANY LAW TRIBUNAL
COURT NO. IV, NEW DELHI

CA(CAA)-93(ND)/2020

IN THE MATTER OF SECTIONS 230-232 OF THE COMPANIES ACT, 2013

Sections 230-232 and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Arrangements) Rules, 2016.

In the matter of Scheme of Amalgamation

OF

ONLINE MICRO SERVICES PRIVATE LIMITED

(Demerged Company/Applicant Company-1)

AND

EVENTURE SOFTSOL PRIVATE LIMITED

(Resulting Company/ Applicant Company-2)

CORAM:

DR. DEEPTI MUKESH
HON'BLE MEMBER (Judicial)
SHRI NARENDER KUMAR BHOLA
HON'BLE MEMBER (Technical)

MEMO OF PARTIES

ONLINE MICRO SERVICES PRIVATE LIMITED

Registered Office at 546, 2nd Floor, Chirag Delhi, New Delhi -110017

…Demerged Company/Applicant Company-1

EVENTURE SOFTSOL PRIVATE LIMITED

Registered office at 546, 2nd Floor, Chirag Delhi, New Delhi -110017

…Resulting Company/ Applicant Company-2

Order Pronounced on: 20.11.2020

For the Applicants: Mr Rohit Aggarwal, Rohit Chaudhary, Advocates

O R D E R

Per-Dr. Deepti Mukesh, Member (J)

1. This is an application filed by the applicant company herein, Online Micro Services Private Limited("for brevity Demerged Company"), Eventure Softsol Private Limited("for brevity Resulting Company"), jointly under section 230-232 of Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 in relation to the Scheme of Arrangement by way of Demerger (hereinafter referred to as the "SCHEME") proposed between the applicants.
2. An affidavit in support of the above application sworn by Mr. Irfan Baig being the authorized representatives of the both applicant companies, who has been authorized vide board resolution dated 29.06.2020 for the both applicant companies, which has been placed on record. It is also represented that the registered office of both the applicant companies are under the domain of Registrar of Companies, NCT of New Delhi & Haryana and within the territorial jurisdiction of this Tribunal.
3. The Applicant Company 1 is a private limited company incorporated as'IMIT Softek Private Limited'on 07.04.1995 vide CIN U74899DL1995PTC067295 issued by the Registrar of Companies, NCT of

Delhi & Haryana. The name was changed to 'Online Micro Services Private Limited'with effect from 02.09.2003 vide fresh certificate of incorporation consequent upon change of name. The registered office of the Applicant Company 1 is situated at 546, 2nd Floor, Chirag Delhi, New Delhi -110017. The Authorized Share Capital of the Companyis Rs. 10,00,000/- and the Paid-Up Share Capital is Rs. 8,00,000/-

4. The Applicant Company 2 is a private limited company, Incorporated on 03.11.2000 under the provisions of Companies Act, 1956 in the name and style of 'Eventure Softsol Private Limited'vide the CIN U72900DL2000PTC108404. The registered office of the Company is situated at 546, 2nd Floor, Chirag Delhi, New Delhi -110017.The Authorized Share Capital of the Companyis Rs. 2,00,000/- and the Paid-Up Share Capital is Rs. 1,50,000/-
5. Both the applicant companies have filed their respective Memoranda and Articles of Association inter alia delineating their object clauses, as well as their last Audited Annual Accounts for the year ended 31.03.2019.
6. The Board of Directors of both the Applicant companies vide meeting held on 29th June, 2020 have unanimously approved the proposed Scheme of demerger as contemplated above. Copies of resolutions passed in the said board meetings have been placed on record.

7. It is stated that the Applicant Company No 1 is having two Shareholders, Certificate from Chartered Accountants certifying list of shareholders is annexed and both of them have given their respective consents by way of affidavits which are annexed to the application. It is further represented that the Company has one Secured Creditor andthirty-one Unsecured Creditors, Certificate from Chartered Accountants certifying list of creditors is annexed and the sole secured creditor and the unsecured creditors holding 98.97%in total valuehave given their respective consents by way of affidavits which are annexed to the application. Therefore,in relation to the shareholders,secured creditor and unsecured creditors it seeks dispensing with holding/convening of the meetings as consents are placed on record.
8. With respect to the Applicant Company No 2, it is stated that the company is having five Shareholders, Certificate from Chartered Accountants certifying list of shareholders is annexed and all of them have given their respective consents by way of affidavits which are annexed to the application.It is further represented that the Company has one Secured Creditor and thirty-sevenUnsecured Creditors, Certificate from Chartered Accountants certifying list of creditors is annexed andthe sole secured creditor and the unsecured creditors holding 96.97% in total valuehave given their consents by way of affidavitwhich are annexed to the application. Therefore, in

relation to the shareholders, secured creditor and unsecured creditors of the Company, it seeks dispensing with holding/convening of the meetings as consents are placed on record.

9. The appointed date as specified in the Scheme is 01st April, 2019 subject to the directions of this Tribunal.

10. Taking into consideration the submissions and the documents filed therewith, we propose to issue the following directions with respect to calling, convening and holding of the meetings of the Shareholders, Secured and Unsecured Creditors or dispensing with the same as well as issue of notices including by way of paper publication as follows: -

A) In relation to the Applicant Company No 1:

(i) **With respect to Equity shareholders:**

In view of consent affidavits, from both the equity shareholders having 100% voting share of the company, convening the meeting of shareholders/members is dispensed with.

(ii) **With respect to Secured Creditors:**

In view of consent affidavits, from the sole secured creditor having 100% voting share of the company, convening the meeting of secured creditor is dispensed with.

iii) **With respect to Unsecured Creditors:**

In view of consent affidavits, from the unsecured creditors holding 98.97% in total value of the company, convening the meeting of unsecured creditors is dispensed with.

B) In relation to Applicant Company No 2:

(i) **With respect to Equity shareholders:**

In view of consent affidavits, from all five equity shareholders having 100% voting share of the company, convening the meeting of shareholders/members is dispensed with.

(ii) **With respect to Secured Creditors:**

In view of consent affidavits, from the sole secured creditor having 100% voting share of the company, convening the meeting of secured creditor is dispensed with.

(iii) **With respect to Unsecured Creditors:**

In view of consent affidavits, from the unsecured creditors holding 96.97% in total value of the company, convening the meeting of unsecured creditors is dispensed with.

Notice of this application shall also be served on the Regional Director, Ministry of Corporate Affairs, B-2 Wing, 2 Floor, Paryawaran Bhavan, CGO Complex, New Delhi-110003; Registrar of Companies at 4 floor, IFCI Tower, 61, Nehru Place, New Delhi-110019; Official Liquidator, Lok Nayak Bhavan, 8 Floor, Khan Market, New Delhi-110001; Income Tax Department, Income Tax Office, Additional Commissioner Of Income Tax, Special Range 4, Central Revenue Building, IP Estate, New Delhi-110002. The notices to Income Tax Authorities shall disclose sufficient details like PAN card numbers, ward numbers and assessing officers so that timely and proper reply may be filed.

The application stands allowed on the aforesaid terms. Let the petition for approval of the scheme of arrangement be filed within a period of seven days from the date of this order.

Sd/-

(SHRI NARENDER KUMAR BHOLA)

MEMBER (T)

Sd/-

(DR. DEEPTI MUKESH)

MEMBER (J)